

9. 9:00 AM CASE NUMBER: N26-0035  
CASE NAME: PETITION OF: KRYSTLE SALAZAR  
HEARING IN RE:  
FILED BY:  
**\*TENTATIVE RULING:\***

**Background**

Petitioner has petitioned the court for declaratory relief under Section 1060 of the Code of Civil Procedure.

Petitioner alleges that she purchased a vehicle from a vendor in Washington State, but that the DMV in California requires a declaration from the court that Petitioner is in fact the owner.

The vendor, CoPart, is not listed as a Defendant. The DMV is listed as a defendant.

**Analysis**

Section 1060 of the CCP requires that there be an active controversy between the two parties involved in the suit. But there is no controversy with the DMV; rather, the controversy, if any exists, is with the vendor, CoPart.

Further, the evidence Petitioner provides, bills of sale, show that David Salazar Gonzalez, is the purchaser, and not the Petitioner. It doesn't appear that Petitioner has standing to sue.

**Disposition**

This Petition will be continued to 6/9/26, and the court will grant Petitioner leave to amend the Petition and identify the correct Petitioner and Defendant.

Petitioner must also serve Defendant with notice of this suit.

Petitioner to file the Order.